

inconsistencies between the 2AP and the FAP were the result of inadvertence or mistake, rather than an attempt to avoid defects in the FAP and the dismissal of the action for failure by Petitioner to exhaust his administrative remedies.

Conclusion and Ruling

For the reasons set forth, the demurrer to the 2AP is **sustained**. Having afforded Petitioner an opportunity to allege a factual and legal basis for excusing his failure to exhaust his administrative remedies to obtain review of the Planning Commission decision by the City Council, and having failed to do so, the Court will **sustain the demurrer without leave to amend**.

24. 9:00 AM CASE NUMBER: C25-03667

CASE NAME: MICHELE BARBARA VS. ALISE MALIKYAR

*HEARING ON MOTION IN RE: CORRECT TYPOGRAPHIC ERROR ON NOTICE OF ENTRY OF JUDGMENT

FILED BY: BARBARA, MICHELE

TENTATIVE RULING:

Summary

This Motion is **denied**. The Court has already adjudicated the ownership of the property owned by Alise Malikyar located at 2324 Tice Valley Blvd., Walnut Creek, CA in the matter, *Alise Malikyar v. Robert Jacobson*, Contra Costa Superior Court MSD20-03656. See also, *Alise Malikyar v. Robert Jacobsen*, Court of Appeal Case No. A166937, where the Court of Appeal affirmed:

After describing various trust documents and Jacobsen's testimony about their import, the court wrote: "While fraud was not expressly alleged in this property dispute, the Court is convinced that Respondent [Jacobsen] engaged in the prior actions to intentionally deprive Petitioner [Malikyar] of her Separate property interest in the Subject Property, to attempt to reconvey the Property to himself and to place the title in the names of different entities to avoid any legal liability. [T] The weight of the evidence allows this Court to find that Respondent [Jacobsen] failed to meet the burden of proof that the Subject Property was conveyed to the Equitec Corporation. The Court finds, instead, Petitioner [Malikyar] is the sole owner of the Subject Property. . . .[p. 4]

It is abundantly clear that Alise Malikyar is the sole owner of 2324 Tice Valley Blvd., Walnut Creek, CA, despite any allegations or proposed judgments entered by Michele Barbara in Nevada. The court believes that these ongoing attempts to circumvent this court's orders amounts to fraud on the Court.

The judgment and notice of entry of judgment filed on December 11, 2025 is **set aside**. Plaintiff's attorney is ordered review the documents in Docket MSD20-03656 and is ordered to show cause to the Court as to why this case should not be dismissed. The Court also requests that the Clerk of the Court relate this case to MSD20-03656, as Michele Barbara is a third party claimant in that case.

25. 9:00 AM CASE NUMBER: C26-00752

CASE NAME: ESTHER DOMINGUEZ VS. FCA US LLC

***HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES**

FILED BY: FCA US LLC

TENTATIVE RULING:

This motion is continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. in Department 16. No appearance is required on September 16, 2026.

26. 9:00 AM CASE NUMBER: C26-00752

CASE NAME: ESTHER DOMINGUEZ VS. FCA US LLC

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: FCA US LLC

TENTATIVE RULING:

This motion is continued, *sua sponte*, to October 21, 2026 at 9:00 a.m. in Department 16. No appearance is required on September 16, 2026.

27. 9:00 AM CASE NUMBER: MSC20-00192

CASE NAME: CARLOS DIAZ VS. CHEVRON CORPORATION

***HEARING ON MOTION IN RE: FOR APPROVAL OF PRIVATE ATTORNEYS GENERAL ACT
REPRESENTATIVE ACTION SETTLEMENT**

FILED BY: DIAZ, CARLOS

TENTATIVE RULING:

Summary

Plaintiff Carlos Diaz ("Plaintiff") on behalf of himself and others similarly situated filed this Motion to Approve the Settlement Agreement reached with Defendant Contra Costa Electric ("Defendant" or "CCE"). The motion is **granted** as set forth herein. No appearance is required at the hearing on September 16, 2026.

Background

The proposed Settlement and Release Agreement ("Settlement") resolves all PAGA claims asserted by Plaintiff on behalf of approximately 850 Aggrieved Employees against Defendant CCE. The Settlement follows more than six and a half years of litigation, including extensive discovery, motion practice, mediation, removal to federal court, and resolution of discovery disputes before the Honorable Judge Edward M. Chen.

The total Gross Settlement Amount is \$775,000, which is non-reversionary. This amount is allocated as follows:

- (1) \$373,450 for PAGA civil penalties (the Net Settlement Amount);
- (2) \$350,000 in attorneys' fees to Plaintiff's Counsel;
- (3) \$35,000 in litigation costs;
- (4) \$10,000 as a service award to Plaintiff Carlos Diaz; and
- (5) \$6,550 for settlement administration expenses to ILYM Group, Inc.